

MASTER SUPPLY AGREEMENT

Contract reference SRG/PROC/2021/114 - electrical and industrial products

THIS AGREEMENT is dated 22 February 2021 and is made between Sturmore Rail Group Ltd (registered in England number 03996120) of Sturmore House, Calder Rise, Northgate Bridge NB2 5HF ("SRG") and Halbrook Electrical Distribution Ltd (registered in England number 04118276) of Halbrook House, Marmion Way, Ellersby EL4 7QN ("the Supplier").

1 DEFINITIONS

1.1 "Commencement Date" means 1 March 2021. "Depot" means a depot of SRG listed in Appendix A. "Price File" means the schedule of prices issued under clause 6. "Products" means electrical, lighting, cable and industrial products.

2 TERM

2.1 This Agreement commences on the Commencement Date and continues for an initial period of three years.

2.2 At the end of the initial period this Agreement continues from year to year until either party gives the other not less than six months' written notice expiring at any time.

3 EARLIER AGREEMENT

3.1 This Agreement supersedes and replaces the Conditions of Supply and Distribution Agreement dated 18 July 2016 between SRG and Halbrook Cable & Fixings Ltd, which ceases to have effect on the Commencement Date.

3.2 Orders placed before the Commencement Date are completed under the earlier conditions.

4 SCOPE

4.1 All purchases of Products by SRG and its Depots from the Supplier are made under this Agreement.

4.2 The Supplier is appointed as an approved supplier of the Products. No volume is guaranteed and the appointment is not exclusive.

5 ORDERING

5.1 SRG places Orders by its electronic purchasing system. An Order is accepted when the Supplier acknowledges it or despatches the Products, whichever is earlier.

5.2 The Supplier's own conditions of sale do not apply to an Order placed under this Agreement.

6 PRICE

6.1 Prices are those in the Price File in force at the date of the Order.

6.2 The Price File is reviewed once in each year with effect from 1 April. The Supplier gives SRG at least sixty days' written notice of a proposed change.

7 PAYMENT

7.1 The Supplier shall be paid within 45 days from the end of the month in which the invoice is dated.

7.2 SRG may set off against any sum due any amount owed to it by the Supplier.

8 DELIVERY AND CARRIAGE

8.1 Delivery is free of carriage on Orders with a net value of GBP 250 or more. On Orders below that value a carriage charge of GBP 22.50 applies.

8.2 Delivery is to the Depot stated on the Order between 07:00 and 16:00 on a Business Day.

9 ENTITIES AND TERRITORY COVERED

9.1 This Agreement covers SRG and the Depots listed in Appendix A. It applies to deliveries in the United Kingdom only.

9.2 No other company in SRG's group may place Orders under this Agreement without the Supplier's written agreement.

10 TERMINATION

10.1 Either party may terminate under clause 2.2.

10.2 SRG may terminate immediately if the Supplier commits a material breach which is not remedied within twenty Business Days of written notice.

11 PRECEDENCE

11.1 If there is a conflict between this Agreement, an Order and the Supplier's conditions of sale, this Agreement prevails, then the Order, then the Supplier's conditions of sale.

12 ENTIRE AGREEMENT AND VARIATION

12.1 This Agreement is the entire agreement between the parties in relation to the supply of the Products.

12.2 No variation of this Agreement is effective unless it is in writing and signed by both parties.

13 GOVERNING LAW

13.1 This Agreement and any dispute arising out of it are governed by the law of England and Wales.

APPENDIX A - DEPOTS COVERED

A1. Sturmore Rail Group - Northern Depot, Calder Rise, Northgate Bridge.

A2. Sturmore Rail Group - Central Stores, Marmion Way, Ellersby.

A3. Deliveries to any other address are made under clause 8 at the carriage rates in clause 8.1.

A4. This Appendix may be amended by SRG on written notice to the Supplier. It has no separate expiry date and forms part of this Agreement.

MASTER SUPPLY AGREEMENT - EXECUTION PAGE

Contract reference SRG/PROC/2021/114.

Executed by the parties. The Commencement Date is 1 March 2021 as stated in clause 1.1.

SRG: Sturmore Rail Group Ltd

The Supplier: Halbrook Electrical Distribution Ltd

SIGNED for and on behalf of Sturmore Rail Group Ltd

A handwritten signature in blue ink, appearing to read 'T. Vessey', written over a horizontal line.

T. Vessey

Head of Procurement

Date: 22 February 2021

SIGNED for and on behalf of Halbrook Electrical Distribution Ltd

A handwritten signature in blue ink, appearing to read 'P. Nettlefold', written over a horizontal line.

P. Nettlefold

Commercial Director

Date: 24 February 2021